



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 17 1994

DOT-E 11271

EXPIRATION DATE: August 31, 1996

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Union Miniere NV Transport, Belgium
(U.S. Agent: Sogem Afrimet, New York, New York)
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of germanium tetrachloride in packagings consisting of an inner glass bottle with a maximum capacity of 10 liters, cushioned within a steel drum, which is further cushioned and overpacked in a second steel drum. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section 173.226(c).
5. BASIS. This exemption is based on Union Miniere's application dated April 14, 1994, and additional information dated June 3 and August 31, 1994, submitted in accordance with 49 CFR 107.103 and the public process thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/ Division	Identification number	Packing Group
Germanium Tetrachloride/ (Poisonous Liquid, corrosive, n.o.s.)	Division 6.1	UN2927	I, Hazard Zone B

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7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is an inner glass bottle with a maximum capacity of 10 liters, placed in a polyethylene bag and cushioned with vermiculite and secured against movement within a protective steel drum. This inner packaging system is further cushioned within an outer steel drum. The packaging is as described in the petitioner's application. The inner glass bottle must be equipped with a Teflon valve closure. The packaging must meet all requirements of 49 CFR 173.226(c) except that the maximum capacity of the inner packaging, and the maximum capacity per outer packaging, is 10 liters.

b. TESTING - The inner packaging system (the glass bottle filled 98% full with liquid and placed in the polyethylene bag inside the inner steel drum) must be tested in accordance with 49 CFR Subpart M of Part 178, at the Packing Group I level. The completed packaging (the glass bottle in the inner steel drum placed in the outer steel drum) must be tested in accordance with 49 CFR Subpart M of Part 178, at the Packing Group I level.

c. MARKING - Outer packagings must be marked "UN1A2" in accordance with 49 CFR 178.503. In addition, the outer packaging must be marked "DOT-E 11271" in letters at least one-half inch high on a contrasting background.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.

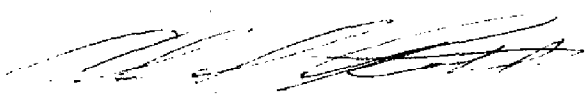
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation laws 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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